

Ross on Crime

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Tendency

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Tendency

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[20.700] Origin of the term

The term tendency comes from the *Uniform Evidence Acts* s 97. The section carries the heading: **The tendency rule**. In *R v Ellis* (2003) 58 NSWLR 700; 144 A Crim R 1 (CCA, Full Bench) Spigelman CJ, with whom the other judges agreed, spoke of the changes brought about by *Uniform Evidence Acts*. His Honour said (at 716; 17 [74]–[75]):

Parliaments intended to lay down a set of principles to cover the relevant field to the exclusion of the common law principles previously applicable.

“Tendency evidence” was previously referred to as “propensity reasoning”. The use of different terminology with precise and comprehensive definitions, manifests an intention to state principles comprehensively and afresh.

[20.705] The tendency rule

Section 97 provides:

97 The tendency rule

- (1) Evidence of the character, reputation or conduct of a person, or a tendency that a person has or had, is not admissible to prove that a person has or had a tendency (whether because of the person's character or otherwise) to act in a particular way, or to have a particular state of mind unless:
 - (a) the party seeking to adduce the evidence gave reasonable notice in writing to each other party of the party's intention to adduce the evidence; and
 - (b) the court thinks that the evidence will, either by itself or having regard to other evidence adduced or to be adduced by the party seeking to adduce the evidence, have significant probative value.
- (2) Paragraph (1)(a) does not apply if:
 - (a) the evidence is adduced in accordance with any directions made by the court under section 100; or
 - (b) the evidence is adduced to explain or contradict tendency evidence adduced by another party.

Note: The tendency rule is subject to specific exceptions concerning character of and expert opinion about accused persons (sections 110 and 111). Other provisions of this Act, or of other laws, may operate as further exceptions.

The tendency rule is closely associated with the coincidence rule (s 98 of the *UEA*) and together these forms of evidence constitute what at common law is termed similar fact evidence. See also the coincidence rule at [\[3.2800\]](#).

[20.710] “tendency”

In Dictionary definitions Part 1 tendency evidence refers only to s 97.

Macquarie Dictionary defines tendency as “an inclination, bent or predisposition to something”.

In *Leonard v The Queen* (2006) 67 NSWLR 545; 164 A Crim R 374 (CCA) Hodgson JA, with whom the other judges agreed, said (at 556–557; 387–388 [53]):

[T]endency evidence against an accused is evidence to the effect that the accused is a person who by reason of his or her character is more likely than others to act in a particular way or have a particular state of mind. Evidence that an accused actually has an ordinary human motive to do something, such as sexual feelings towards someone else, is not as such that kind of evidence.

[20.715] “significant”

In *R v Lockyer* (1996) 89 A Crim R 457 (NSW, Hunt CJ at CL) his Honour ruled (At 459):

One of the primary meanings of the adjective “significant” is “important” or “of consequence”. In my opinion, that is the sense in which it is used in s 97.

Approved: *R v Toki* (2000) 116 A Crim R 536 at 541 [31] (NSW, Howie J).

In *McPhillamy v The Queen* (2018) 92 ALJR 1045; [2018] HCA 52, the High Court again considered the admissibility of tendency evidence pursuant to s 97 of the *Uniform Evidence Act*. The Court allowed an appeal from Court of Criminal Appeal of the Supreme Court of New South Wales and in doing so quashed six convictions against the accused for sexual offences committed in between 1995 and 1996 in relation to the complainant who at the time was 11 years old. The complainant was an altar boy and the appellant was supervising him in his capacity as an acolyte. The disputed evidence was from two witnesses who stated in 1985 (when they were about 13 years old) they were sexually abused by the appellant when they were boarding at a school at which the appellant was a housemaster. This was admitted at trial as tendency evidence which demonstrated that the appellant has sexual interest in boys who were under his supervision. The plurality held that this evidence did not overcome the threshold of being of significant probative value because it merely showed that 10 years prior to the alleged offence the appellant sexually abused two young boys but did not demonstrate a tendency relating to the complainant.

[20.720] Probative value versus prejudicial effect: s 101

Section 101 deals with the probative value and prejudicial effect of the evidence. The section provides:

101 Further restrictions on tendency evidence and coincidence evidence adduced by prosecution

- (1) This section only applies in a criminal proceeding and so applies in addition to sections 97 and 98.
- (2) Tendency evidence about a defendant, or coincidence evidence about a defendant, that is adduced by the prosecution cannot be used against the defendant unless the

probative value of the evidence substantially outweighs any prejudicial effect it may have on the defendant.

- (3) This section does not apply to tendency evidence that the prosecution adduces to explain or contradict tendency evidence adduced by the defendant.
- (4) This section does not apply to coincidence evidence that the prosecution adduces to explain or contradict coincidence evidence adduced by the defendant.

Dictionary definitions Part 1 defines “probative value”:

probative value of evidence means the extent to which the evidence could rationally affect the assessment of the probability of the existence of a fact in issue.

For a discussion of the meaning or probative value, see [R v PWD \(2010\) 205 A Crim R 75](#).

The cases say that s 101(2) is an admissibility provision.

In [R v Ellis \(2003\) 58 NSWLR 700; 144 A Crim R 1](#) (NSW CCA, Full Bench) the court sought to interpret s 101(2). After careful examination of authority and the words of the subsection, Spigelman CJ, with whom Sully and O’Keefe JJ agreed, said (at 718; 19 [95]):

Section 101(2) calls for a balancing exercise which can only be conducted on the facts of each case. It requires the Court to make a judgment, rather than to exercise a discretion.

Approved and followed: [L v Tasmania \(2006\) 15 Tas R 381 at 401](#) [52] (CCA).

In [R v AH \(1997\) 42 NSWLR 702; 98 A Crim R 71](#) (CCA) Ireland J, with whom Levine J agreed and Hunt CJ at CL expressed complete agreement, said (at 709; 78):

The prejudicial effect of tendency evidence is that the ordinary person thinks that someone with an established tendency to conduct himself in a certain way whenever a particular opportunity arises.

In [R v Fletcher \(2005\) NSWCCA 338; 156 A Crim R 308](#) (NSW CCA) Simpson J, with whom the other judges agreed, made her own study of the words in s 101(2) and examined [R v Ellis](#) (above). Her Honour said (at 519 [48]):

I can do no more than note the mysteries of s 101(2). For the present purposes I think I should, notwithstanding my reservations about its terms, continue to treat the section, as have others, and in accordance with authority, as if it were a provision concerning the admissibility or otherwise of evidence.

In *L v Tasmania* (2006) 15 Tas R 381 (CCA) Underwood CJ, with whom the other judges agreed on this point, said (at 397 [40]):

In the balancing exercise, the reasonable possibility of concoction or contamination may deprive the evidence of its significant probative value and/or may result in its significant probative value being substantially outweighed by its prejudicial effect, when considered in the light of other evidence adduced or to be adduced.

See also, *AE v The Queen* [2008] NSWCCA 52 at [44]; *BSJ v The Queen* [2012] VSCA 93.

In *R v Zhang* (2005) 196 FLR 152; 227 ALR 311; 158 A Crim R 504 (NSW CCA) Simpson J, with whom Buddin J agreed, said (at 181; 340; 535 [125]):

[T]he word “adduced” as it appears in the subsection...should...be read as meaning “tendered”.

In *IMM v The Queen* (2016) 257 CLR 300; 90 ALJR 529; 330 ALR 382; [2016] HCA 14, the High Court held that in ascertaining the admissibility of tendency evidence, the Court assumes that the evidence is credible and reliable. In *Hughes v The Queen* [2017] HCA 20, the court held that in order for the tendency and coincidence evidence to be admitted, there is no need that a striking similarity or underlying unity is established. The threshold for the admissibility of tendency evidence is generally easier where the evidence relates to the one complainant as opposed to multiple complainants: *R v Bauer* (2018) 92 ALJR 846; [2018] HCA 40.

In *TL v The King* [2022] HCA 35 the High Court clarified the comment in *Hughes v The Queen* [2017] HCA 20 that when tendency evidence is admitted to establish the identify of the offender ‘the probative value of tendency evidence will almost certainly depend upon close similarity between the conduct evidencing the tendency and the offence’. The High Court has refined the test for the admissibility of tendency evidence which relates to establishing the identity of the offender. When there is other evidence that independently supports that contention that the accused is the offender, greater latitude is accorded relating to the extent of the closeness of the similarity between the conduct evidencing the tendency and the offence in order for the evidence to satisfy the admissibility threshold.

[20.725] Long delay

In *R v Watkins* (2005) 153 A Crim R 434 (NSW CCA) the appellant had been convicted of fraud committed 1999–2002. The prosecution introduced prior convictions in 1983 and 1984 as tendency evidence. The court allowed the appeal against conviction. The earlier convictions were too long before and not sufficiently relevant.

[20.730] Notice

Section 97(1)(a) says that the evidence is not admissible if the party adducing the evidence has not given reasonable notice in writing.

In *Gardiner v The Queen* (2006) 162 A Crim R 233 (NSW CCA) Simpson J said (at 260 [128]):

A properly drafted tendency evidence notice should, in my opinion, explicitly identify the fact or facts in issue upon which the tendering party asserts the evidence bears. It should also specifically identify the tendency sought to be proved.

[20.735] Application

Not tendency:

In *Qualtiere v The Queen* (2006) 171 A Crim R 463 (NSW CCA) McClellan CJ at CL, with whom Latham J agreed, said that evidence of prior uncharged sexual acts used merely to provide context is not tendency. And Howie J, concurring, said (at 494 [118]):

[T]he complainant's account of the relationship would rarely have sufficient probative value to overcome the precondition of admissibility for tendency evidence in s 97 and 101.

[Appeal allowed and retrial ordered because the trial judge had misdirected the jury.]

In *R v Cakovski* (2004) 149 A Crim R 21 (NSW CCA) the accused was convicted of murder. The trial judge stopped the accused from leading evidence of the deceased's convictions for murder some 23 years before. Held: appeal against conviction allowed. The evidence should have been admitted as relevant to self-defence. But it was not tendency evidence.

In *R v Adam* (1999) 106 A Crim R 510 (NSW CCA) the court said in a joint judgment that evidence which is an integral part of the charge is not tendency evidence.

[20.737] Relationship evidence and res gestae

The tendency rule does not apply to the admission of what at common law is called relationship evidence or res gestae. This type of evidence continues to be governed by the common law: *Roach v The Queen* (2011) 242 CLR 610; 210 A Crim R 300; [2011] HCA 12; *Samadi v The Queen* (2008) 192 A Crim R 251; [2008] NSWCCA 330; *LJW v The Queen* [2010] NSWCCA 114.

[20.740] Other references

See also

Coincidence at [3.2800]; **Propensity** at [16.6300]; **Similar facts** at [19.4400].

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